



In care of:

To:	<u>Jake Wozniak</u>	From:	<u>Mike Arias</u>
Company:	<u>AON Risk Services Northeast</u>	Date:	<u>03/25/2026</u>
Tel:	<u>973.668.9858</u>	Tel:	<u>646.899.4967</u>
e-mail:	<u>Jake.Wozniak@aon.com</u>	e-mail:	<u>Mike.Arias@Chubb.com</u>
Re:	<u>Binder Letter</u>	Pages including cover:	<u>22</u>
Licensed Producer:	<u>Jake Wozniak</u>		

Account:	<u>Rand Topco, LLC</u>
Insured Address:	<u>2000 Westchester Ave Purchase, NY, 10577-2539</u>
Line of Coverage:	<u>CODA Premier Directors and Officers Liability Excess DIC Policy</u>
Insuring Company:	<u>ACE American Insurance Company</u>
Effective Date:	<u>03/17/2026</u>
Expiration Date:	<u>03/17/2027</u>
Policy Number:	<u>G71101897 004</u>

Dear [Jake](#),

I am pleased to offer the attached binder for [Rand Topco, LLC](#). The commission payable for placement of this business is **20%**.

Please review this Binder for accuracy and contact Chubb prior to the effective date of Policy coverage in the event of any inaccuracies in this Binder. If Chubb does not hear from you prior to the effective date, it will be assumed that this Binder has been accepted as an accurate description of our agreed upon terms of coverage.

Thank you for binding coverage with the Chubb. If you should have any questions, please feel free to contact me.

Sincerely,

[Michael Arias](#)

[Senior Underwriter](#)

Chubb – Financial Lines

The Insurer hereby binds the coverage described below. However, any obligations the Insurer may have under this Binder are conditioned upon each of the following conditions having first been met:

1. The Named Insured has submitted to the Insurer the following documents, and the Insurer has received such documents no later than close of business on **[03/31/2026]**:
 - Copies of all underlying carriers' quote letters, binder letters and binding subjectivities;
 - Copies of all underlying carriers' policies, when available
 - **Identify any other information required, if any;** and
2. The Insurer receives the underlying policies within thirty (30) days of issuance by the underlying carriers.
3. The Applicant has remitted the premium specified below to the Insurer so that the Insurer receives the premium no later than close of business on the 30th day from the date of this Binder or the Effective Date of this Policy, whichever is later.

LIMIT and PREMIUM:

CODA Premier Directors & Officers Liability Excess DIC Coverage:

Option 1:

Aggregate Limit of Liability		Attachment Point of First Limit of Liability	Total POLICY Premium Due
A. First Limit of Liability	\$5,000,000	\$35,000,000	\$15,500
B. FIRST REINSTATED LIMIT OF LIABILITY	N/A		
C. SECOND REINSTATED LIMIT OF LIABILITY	N/A		
Maximum Limit of Liability under A, B and C Combined. Please refer to Clause 4 of this Policy for the details on how the reinstatements operate.	\$5,000,000		

Additional Coverages and Sublimits		
CODA Access Fund	\$25,000	The Limit of Liability for the CODA Access Fund is in addition to the Limit of Liability and any applicable reinstatements set forth above and the maximum amount the INSURER shall pay for such CODA Access Fund.
Public Relations Fund	\$25,000	The Public Relations Fund and Enforcement Fund are sublimits that are part of, and not in addition to, the Limit of Liability and any applicable reinstatements set forth above.
Enforcement Fund	\$25,000	

PLEASE NOTE THE FOLLOWING:

- The Policy includes coverage required by The Terrorism Risk Insurance Act of 2002. The premium for the coverage is \$0.

Schedule of Underlying Directors' and Officers' Insurance:

Carrier	Policy No.	Policy Period	Limits	Attachment
Allianz	USF01721726	3/17/2026 – 3/17/2027	\$5,000,000	\$250,000
Chubb	G47396554 004	3/17/2026 – 3/17/2027	\$5,000,000	\$5,000,000
Markel	MKLC1MXM000428	3/17/2026 – 3/17/2027	\$5,000,000	\$10,000,000
Starr	1000625198261	3/17/2026 – 3/17/2027	\$5,000,000	\$15,000,000
Liberty	DO6NACQ5GQ004	3/17/2026 – 3/17/2027	\$5,000,000	\$20,000,000
AIG	01-647-02-43	3/17/2026 – 3/17/2027	\$5,000,000	\$25,000,000
Zurich	MPL 2553795 - 03	3/17/2026 – 3/17/2027	\$5,000,000	\$30,000,000
Chubb	G71101897 004	3/17/2026 – 3/17/2027	\$5,000,000	\$35,000,000

Policy Form Number:	Dec. Page – PF-41159 (10/13); Policy – PF-41158 (10/13)
Prior Or Pending Proceeding Date:	03/17/2023
Discovery Period Premium:	150% of the Policy Premium

The following Endorsements will be added to the basic contract(s):

Endorsement Title	Additional Information (if applicable)	Number
1. Signatures		CC-1K11k (10/24) All states except Ohio
2. Changes and Assignments - Amended		PF-215554 (02/25) (All states except CA and DC)
3. Prior Acts Exclusion	03/17/2023	PF-44824 (12/21)
4. Miscellaneous Enhancement AON		PF-46422 (07/15)

Terrorism Endorsements:		
Disclosure Pursuant To Terrorism Risk Insurance Act		TRIA11e (08/20)
Cap on Losses From Certified Acts of Terrorism		PF-45354 (01/15)

Policy Addendums:		
U.S. Treasury Department's Office Of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders		PF-17914a (04/16)
Trade or Economic Sanctions Notice		ALL-21101 (09/19)
Chubb Producer Compensation Practices & Policies		ALL-20887a (09/19)

This Binder is valid for 30 days from the Effective Date.

Please read this Binder carefully, as the limits, coverage and other terms and conditions may vary significantly from those requested in your submission and/or from the expiring policy. Terms and conditions that are not specifically mentioned in this Binder are not included. The terms and conditions of this Binder supersede the submitted insurance specifications and all prior quotes and binders. Actual coverage will be provided by and in accordance with the policy as issued.

The insurer is not bound by any statements made in the submission purporting to bind the insurer unless such statement is reflected in the policy or in an agreement signed by someone authorized to bind the insurer.

When signed by the Insurer, the coverage described above is in effect from 12:01 AM (local time at the address shown above) of the Effective Date listed above to 12:01 AM (local time at the address shown above) of the expiration date listed above pursuant to the terms, conditions and exclusions of the Policy form listed above and any Policy endorsements described above. Unless otherwise indicated, this Binder may be canceled by the Insured, or by the Broker on behalf of the Insured, by written notice to the Insurer or by the surrender of this Binder stating when such cancellation shall be effective. Unless otherwise indicated, this Binder may be canceled by the Insurer prior to the Effective Date by sending written notice to the Insured at the address shown above stating when such cancellation shall be effective. Unless otherwise indicated, this Binder may be canceled by the Insurer on or after the Effective Date in the same manner and upon the same terms and conditions applicable to cancellation of the Policy form listed above. If cancellation of the Binder, by or on behalf of either the Insured or the Insurer, is effective after the Effective Date, then the Insurer shall be entitled to the earned premium, on a pro-rata basis, for the covered period. Issuance by the Insurer and acceptance by or on behalf of the Insured of the Policy shall render this Binder void except as indicated below.

Conditions precedent to coverage afforded by this Binder are: (1) receipt, review and acceptance of the information required herein within the stated timeframe; and (2) that no material change in the risk occurs and no submission is made to the Insurer of a claim or circumstances that might give rise to a Claim between the date of this Binder indicated above and the Effective Date. If such required information is not received, reviewed and accepted within the stated timeframe, or such material change in the risk is discovered or submission of a claim or circumstance is made, then the proposed insurance coverage will be void ab initio ("from the beginning"). The underwriter, at its sole discretion, may also modify the terms and conditions of the Policy, and/or cancel coverage, pursuant to the terms of the Policy.

Note: If the Insuring Company noted above is either Westchester Surplus Lines Insurance Company or Illinois Union Insurance Company, then this insurance is issued pursuant to the state Surplus Lines laws that the Insured is domiciled. Persons insured by Surplus Lines carriers do not have the protection of the above captioned state's Guaranty Act to the extent of any right of recovery for the obligation of an insolvent unlicensed insurer.

Any applicable taxes, surcharges or countersignature fees, etc., are in addition to the above bound figures. Your office is responsible for making State Surplus Lines Filings and complying with all applicable laws. Premium Surcharge Notice is attached, if applicable.

Sincerely,

Michael Arias

Senior Underwriter

Chubb. Insured.SM

Chubb – Financial Lines

09/21 Edition



Premium Surcharges

The following surcharges will apply in addition to the premium. Some exemptions apply. Premium surcharges are subject to change at the anniversary dates of multiyear policies paid in annual installments. Collection and remittance of premium surcharges for surplus lines policies, if applicable, are the responsibility of the surplus lines broker.

Florida Insureds

- Florida Insurance Guaranty Association- Emergency Assessment 2023A 1.0%

Kentucky Insureds

- Premium Surcharge 1.8%
- Local Government Premium Tax Varies by municipality

New Jersey Insureds

- NJ Property-Liability Insurance Guaranty Association
 - Effective October 1, 2024 0.3%

West Virginia Insureds

- Premium Surcharge 0.55%

All Other Insureds

There are currently no premium surcharges in your state for this line of business. This is subject to change at the anniversary dates of multiyear policies paid in annual installments.

TERMS OF TRADE

****PAYMENT DUE 30 DAYS FROM EFFECTIVE DATE****

Payment is due, in full, within 30 days from the date of this Binder or the Effective Date of this policy, whichever is later.

Failure to pay premium will result in cancellation of this policy.

Please make sure to include your Chubb Policy Number in any correspondence and on any checks.

Please remit premium payment to:

Genius Payments

Regular Mail
ACE USA
Dept CH 10678
Palatine, IL 60055-0678

Genius Overnight Address

ACE American Insurance Co.
Genius-10678
5505 N. Cumberland Ave Suite 307
Chicago, IL 60656-1471
Attn: Box 10678

Wire Payment

Mellon Bank West, NA
3 Mellon Bank Center
Pittsburgh, PA 15259
ABA# 043000261
Account # 093-8373



DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Disclosure Of Premium

In accordance with the federal Terrorism Risk Insurance Act, we are required to provide you with a notice disclosing the portion of your premium, if any, attributable to coverage for terrorist acts certified under the Terrorism Risk Insurance Act. The portion of your premium attributable to such coverage is shown in this endorsement or in the policy Declarations.

Disclosure Of Federal Participation In Payment Of Terrorism Losses

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals; 80% of that portion of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.

Cap On Insurer Participation In Payment Of Terrorism Losses

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

COVERAGE OF "ACTS OF TERRORISM" AS DEFINED BY THE REAUTHORIZATION ACT WILL BE PROVIDED FOR THE PERIOD FROM THE EFFECTIVE DATE OF YOUR NEW OR RENEWAL POLICY THROUGH THE EARLIER OF THE POLICY EXPIRATION DATE OR DECEMBER 31, 2027. EFFECTIVE DECEMBER 31, 2027 THE TERRORISM RISK INSURANCE PROGRAM REAUTHORIZATION ACT EXPIRES.

Terrorism Risk Insurance Act premium: \$0.



THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Named Insured Rand Topco, LLC			Endorsement Number 001
Policy Symbol DOX	Policy Number G71101897 004	Policy Period 03/17/2026 to 03/17/2027	Effective Date of Endorsement 03/17/2026
Issued By (Name of Insurance Company) ACE American Insurance Company			

Cap On Losses From Certified Acts Of Terrorism

- A. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

“Certified act of terrorism” means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a “certified act of terrorism” include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
- B. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any “loss” that is otherwise excluded under this Policy.

All other terms and conditions of this Policy remain unchanged.

Authorized Representative

CHANGES AND ASSIGNMENTS - AMENDED

Named Insured Rand Topco, LLC			Endorsement Number 002
Policy Symbol DOX	Policy Number G71101897 004	Policy Period 03/17/2026 to 03/17/2027	Effective Date of Endorsement 03/17/2026
Issued By (Name of Insurance Company) ACE American Insurance Company			

Insert the policy number. The remainder of the information is to be completed only when this endorsement is issued subsequent to the preparation of the policy.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is agreed that Clause 9, CHANGES AND ASSIGNMENTS, is amended to add the following:

If the terms or conditions of the Primary Policy set forth in Item VIII. of the Declarations ("PRIMARY POLICY") are changed in any manner or differ in any respect from the binder for such PRIMARY POLICY, the Company shall have 30 days after receipt of the PRIMARY POLICY containing such changes to provide written objection to such changes. If such written objection is provided, such changes shall not apply to this POLICY and no coverage related to such changes shall apply. If such written objection is not provided within the time frame captioned above, such changes shall apply.

All other terms, conditions and limitations of this POLICY shall remain unchanged.

Authorized Representative

PRIOR ACTS EXCLUSION – SPECIFIED DATE

Named Insured Rand Topco, LLC		Endorsement Number 003
Policy Number G71101897 004	Policy Period 03/17/2026 to 03/17/2027	Effective Date of Endorsement 03/17/2026
Issued By ACE American Insurance Company		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

CODA PREMIER® DIRECTORS AND OFFICERS LIABILITY EXCESS DIC POLICY

It is agreed that the following Clause is added:

- **PRIOR ACTS EXCLUSION**

The INSURER shall not be liable to make any payment for LOSS in connection with any CLAIM based on or attributable to any facts, circumstances or WRONGFUL ACTS committed, attempted, or allegedly committed or attempted, in whole or in part, before 03/17/2023;

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this POLICY shall remain unchanged.

Authorized Representative

CODA ENHANCEMENT ENDORSEMENT

Named Insured Rand Topco, LLC		Endorsement Number 004
Policy Number G71101897 004	Policy Period 03/17/2026 to 03/17/2027	Effective Date of Endorsement 03/17/2026
Issued By ACE American Insurance Company		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

CODA PREMIER® DIRECTORS AND OFFICERS LIABILITY EXCESS DIC POLICY

It is agreed that:

- Item III of the Declarations of this POLICY is deleted in its entirety and the following is inserted:

Item III. A. Limit of Liability: \$5,000,000,
Aggregate Limit of Liability for all LOSS paid on behalf of all INSUREDS arising from all CLAIMS first made during the POLICY PERIOD.

B. FIRST REINSTATED LIMIT OF LIABILITY: \$N/A, (in the aggregate)

C. SECOND REINSTATED LIMIT OF LIABILITY: \$N/A (in the aggregate)

D. THIRD REINSTATED LIMIT OF LIABILITY: \$N/A (in the aggregate)

Maximum Limit of Liability under III.A, III.B, III.C and III.D combined: \$5,000,000

The limits of liability in III.A, III.B, III.C and III.D are separate and independent. Please refer to Clause 4 of this POLICY for the details on how the reinstatements operate.

- The preamble of the POLICY is deleted in its entirety and the following is inserted:

The COMPANY, the INSUREDS, and the INSURER agree as follows:

- Clause 1. INSURING CLAUSE, Section (a) is deleted in its entirety and the following is inserted:

(a) The INSURER shall pay on behalf of the INSUREDS any and all NON-INDEMNIFIABLE LOSS that the INSUREDS become legally obligated to pay by reason of any CLAIM first made against the INSUREDS during the POLICY PERIOD or, if elected, the DISCOVERY PERIOD, for any WRONGFUL ACTS that are actually or allegedly caused, committed, or attempted by the INSUREDS; or in respect of PRELIMINARY INVESTIGATIONS only, for subpoenas, requests or demands made, prior to the end of the POLICY PERIOD or, if elected, the DISCOVERY PERIOD, but only if:

- the insurer(s) of the UNDERLYING INSURANCE for any reason:
 - refuses to indemnify the INSUREDS as required under the terms of the UNDERLYING INSURANCE; or
 - fails to indemnify the INSUREDS within 45 days after a request by or on behalf of the INSUREDS for such indemnification; or
 - is unable to indemnify the INSUREDS; or
 - rescinds, voids or cancels, or attempts to rescind, void or cancel, the UNDERLYING INSURANCE; or

- v. as a result of a liquidation or reorganization proceeding commenced by or against the COMPANY pursuant to U.S. Bankruptcy Code, as amended, or any similar federal, state, foreign or common law ("Code"), fails or refuses to indemnify the INSUREDS because the proceeds of such UNDERLYING INSURANCE are subject to the automatic stay or similar payment prohibition under the Code; or
 - vi. refuses or fails to indemnify the INSUREDS for any settlement amount to which the insurer(s) of the UNDERLYING INSURANCE refuses to consent, or fails to consent within sixty (60) days after the INSUREDS request such consent; or
 - 2. according to the terms and conditions of the UNDERLYING INSURANCE, the insurer(s) of the UNDERLYING INSURANCE is not liable for such portion of the LOSS; or
 - 3. the limit(s) of liability or any applicable sublimit(s) of liability of the UNDERLYING INSURANCE has been exhausted by reason of:
 - i. the insurer(s) of the UNDERLYING INSURANCE, the INSUREDS and/or any other party paying thereunder the full amount of such underlying limit(s) of liability or sublimit(s); or
 - ii. a provision in the UNDERLYING INSURANCE which exhausts or reduces the limit of liability in the UNDERLYING INSURANCE by reason of any amount paid or payable under another policy issued by the insurer(s) of the UNDERLYING INSURANCE or a subsidiary, associate, affiliate or parent of the insurer(s) of the UNDERLYING INSURANCE; or
 - 4. the UNDERLYING INSURANCE is disclaimed or cancelled by any bankruptcy trustee or other insolvency administrator.
4. Clause 1. INSURING CLAUSE, Section (b) is deleted in its entirety and the following is inserted:
- (b) In the event any UNDERLYING INSURANCE affords broader coverage for an INSURED than is afforded under this POLICY, then notwithstanding anything in this POLICY to the contrary, except:
- Clause 4 (Limits Of Liability), Clause 5 (Alternative Dispute Resolution), Clause 6 (Assistance, Cooperation And Consent), Clause 8 (Cancellation), Clause 10 (Advancement of DEFENSE COSTS), Clause 11 (Currency), Clause 13 (INSUREDS' Reporting Duties), Clause 14 (Other Insurance), Clause 15 (Notice), Clause 16 (Authority), Clause 23 (Appeals), Clause 27 (State Amendatory Inconsistency), and any portion of any endorsement to this POLICY which restricts coverage otherwise available under this POLICY;
- this POLICY is amended to follow and be subject to the terms and conditions of such UNDERLYING INSURANCE only in respect of and to the extent of such broader coverage for the INSURED; provided this POLICY shall not cover any claim against the COMPANY or any amounts indemnified, advanced or paid by the COMPANY to an INSURED, except to the extent the COMPANY recoups from an INSURED such amounts indemnified, advanced or paid.
5. A new Section (f) shall be added to Clause 1. INSURING CLAUSE, as follows:
- (f) As part of, and not in addition to, the Limit of Liability and any applicable reinstatement(s) set forth in Item III of the Declarations, the INSURER shall pay NON-INDEMNIFIABLE LOSS that is incurred by or on behalf of the INSUREDS with the INSURER'S prior consent as MITIGATION COSTS.
6. Clause 2. DEFINITIONS, Section (a), APPLICATION, is deleted in its entirety and the following is inserted:
- (a) "APPLICATION" shall mean all underwriting data provided in writing by the COMPANY or the INSUREDS to the INSURER during the 12 months preceding inception of this POLICY. All such applications and materials are deemed attached to and incorporated into this POLICY.
7. Clause 2. DEFINITIONS, Section (b), CLAIM, paragraph 1 is deleted in its entirety and the following is inserted:
1. any written demand, or any civil, criminal, arbitration, mediation or other dispute resolution, judicial, administrative, or regulatory proceeding for monetary or non-monetary (including injunctive) relief, or any investigation, including without limitation a Wells Notice or target letter, against any INSURED for a WRONGFUL ACT, including any appeal therefrom;

8. Clause 2. DEFINITIONS, Section (d), DEFENSE COSTS, is amended as follows:
- a. The first paragraph is amended to read in its entirety as follows:

“DEFENSE COSTS” shall mean that portion of LOSS consisting of reasonable costs, charges, fees (including but not limited to legal fees and experts’ fees), document production fees and expenses incurred in the defense, investigation or appeal of a CLAIM whether or not such CLAIM is ultimately settled or adjudicated, including but not limited to:
 - b. Paragraph 1 is deleted in its entirety and the following is inserted:
 1. investigating, defending or appealing an EXTRADITION PROCEEDING;
 - c. A new paragraph shall be added to read as follows:
 - In the event that an attorney representing an INSURED with respect to a CLAIM which could give rise to a criminal sanction (“Counsel”) concludes that narrative descriptions within Counsel’s invoices could prejudice the INSURED, then the INSURER will accept reasonably generalized descriptions of Counsel’s charges.
9. Clause 2. DEFINITIONS, Section (e), DISCOVERY PERIOD, is deleted in its entirety and the following is inserted:
- (e) “DISCOVERY PERIOD” shall mean the continuation of the reporting period of this POLICY for the time periods and in the manner set forth in Clause 21(a)-(c) (Extended Discovery Period, Insolvency Discovery Period and FORMER INSURED Discovery Period).
10. Clause 2. DEFINITIONS, Section (h), EXTRADITION PROCEEDING, is deleted in its entirety and the following is inserted:
- (h) “EXTRADITION PROCEEDING” shall mean any formal process by which an INSURED located in any country is or is sought to be surrendered to any other country for trial or otherwise to answer for a WRONGFUL ACT or any criminal accusation.
11. Clause 2. DEFINITIONS, Section (k), INSUREDS, paragraph 1 is amended as follows:
- a. Paragraphs i. and vi. are deleted in their entirety and the following are inserted:
 - i. duly elected or appointed directors (including shadow and de facto directors), trustees (other than bankruptcy trustees), governors, officers, management committee members, MANAGERS, in-house general counsel, ESG EXECUTIVE, risk manager, head of investor relations, head of human resources or comptrollers of the COMPANY;
 - vi. with respect to any COMPANY chartered or operating outside the United States, natural person(s) serving in a position with such COMPANY which is functionally equivalent or comparable to any position described in i through v above; or
 - b. A new paragraph vii. shall be added as follows:
 - vii. an employee of the COMPANY whom the United Kingdom Financial Services Authority, Financial Conduct Authority, Prudential Regulatory Authority or such a similar governmental financial regulatory authority has given its approval to perform one or more of the controlled functions which it has designated, or does designate, as ‘significant influence functions’ for the COMPANY;
12. Clause 2. DEFINITIONS, Section (k), INSUREDS, paragraph 3 is deleted in its entirety and the following is inserted:
3. all natural persons who were, now are, or shall be serving as directors, officers, trustees, governors, MANAGERS, board observers, members of the board of managers or the equivalent thereof, for any OUTSIDE ENTITY if:
 - i. such activity is part of their duties regularly assigned by the COMPANY; or
 - ii. such activity is at the direction or request of the COMPANY; or
 - iii. such persons are a member of a class of persons so directed to serve by the COMPANY; and

13. Clause 2. DEFINITIONS, Section (m), LOSS, is deleted in its entirety and the following is inserted:

(m) "LOSS" shall mean any and all amounts that the INSUREDS are obligated to pay by reason of a CLAIM made against the INSUREDS; or funds provided for as part of the CODA Access Fund, Public Relations Fund or MITIGATION COSTS, and shall include but not be limited to:

1. compensatory, exemplary, aggravated, punitive and multiple damages, judgments, settlements, mootness fees, plaintiffs' attorney fees for which an INSURED is responsible pursuant to a settlement, judgment or order and pre-judgment and post-judgment interest;
2. DEFENSE COSTS;
3. reasonable costs, charges, fees and expenses (including the premium or origination fee for a loan or bond) solely to facilitate the return of amounts incurred and required to be repaid by the chief executive officer or chief financial officer of the company named in Item I of the Declarations pursuant to Section 304(a) of the Sarbanes-Oxley Act of 2002, or any INSURED pursuant to Sections 210 or 954 of the Dodd-Frank Wall Street Reform and Consumer Protection Act of 2010, or any rules or regulations pursuant to such Sections. Such amounts do not include the payment, return, reimbursement, disgorgement or restitution of any such amounts requested or required to be repaid by such persons pursuant to such Section 304(a) or Sections 210 or 954;
4. reasonable costs, charges, fees and expenses incurred in connection with the CODA Access Fund, the Public Relations Fund and the Enforcement Fund as set forth in Clause 1(c)-(e) respectively;
5. U.K. CORPORATE MANSLAUGHTER ACT DEFENSE COSTS;
6. taxes, including taxes imposed upon a COMPANY and national insurance contributions, for which the INSUREDS are legally liable to pay by reason of:
 - A. the COMPANY's insolvency; or
 - B. the INSURER's payment of LOSS incurred by such INSURED;
7. fines or penalties assessed against an INSURED for a violation of any federal, state, local or foreign law, if such violation is neither intentional nor willful, including without limitation any such violation of the Foreign Corrupt Practices Act at 15 U.S.C. § 78dd-2(g)(2)(B) or 15 U.S.C. § 78ff(c)(2)(B), any similar provisions of the United Kingdom Bribery Act 2010, and the United States Federal Food, Drug and Cosmetic Act. DEFENSE COSTS with respect to the foregoing shall be considered LOSS; and
8. Notwithstanding anything to the contrary herein, and in all events, LOSS shall include civil fines, penalties, unpaid wages or other amounts for which an INSURED is legally obligated to pay pursuant to the Fair Labor Standards Act, the California Fair Pay Act, Section 630 of the New York Business Corporation Law, each as amended, or any similar provision of any federal, state, local or foreign law.

Provided, however, LOSS other than DEFENSE COSTS shall not include matters that are uninsurable under the law pursuant to which this POLICY shall be construed. The INSURER shall not assert that any LOSS incurred by an INSURED is uninsurable due to the INSURED's actual or alleged violation of Section 11, 12 or 15 of the Securities Act of 1933 or state equivalents thereof, as amended.

The insurability of punitive, exemplary and multiple damages, taxes, unpaid wages and other amounts pursuant to subparagraph 7 above, fines or penalties shall be governed by the law of the applicable jurisdiction that most favors coverage for such punitive, exemplary and multiple damages, taxes, unpaid wages and other amounts pursuant to subparagraph 7 above, fines or penalties. If the INSUREDS present to the INSURER a written opinion from legal counsel that such punitive, exemplary or multiple damages, taxes, unpaid wages and other amounts pursuant to subparagraph 7 above, fines or penalties are insurable under such applicable law, the INSURER shall not challenge that determination.

14. Clause 2. DEFINITIONS, Section (o), NON-INDEMNIFIABLE LOSS, is deleted in its entirety and the following is inserted:
- (o) “NON-INDEMNIFIABLE LOSS” shall mean LOSS for which the COMPANY or, with respect to INSUREDS described in Clause 2(k)(3) above, the OUTSIDE ENTITY, refuses to indemnify or advance DEFENSE COSTS or other LOSS as required or permitted, or is financially or legally unable to indemnify, or fails to indemnify within 60 days after the INSUREDS request such indemnification, or recoups such indemnification or advancement of DEFENSE COSTS or other LOSS and the INSUREDS comply with Clause 19 (Subrogation) below.
15. Clause 2. DEFINITIONS, Section (s), PRELIMINARY INVESTIGATION, is deleted in its entirety and the following is inserted:
- (s) “PRELIMINARY INVESTIGATION” shall mean any request, demand, or subpoena for an INSURED to appear at a meeting, deposition or interview, provide a witness statement or other testimony, give evidence or information, or produce documents, electronic data or records relating to the business of the COMPANY, or any demand or investigation which the INSURED is required or requested to attend in his or her capacity as an INSURED, whether or not a WRONGFUL ACT is alleged, where such request or demand is:
- i) by or on behalf of an ENFORCEMENT AUTHORITY including a raid or on-site visit by or on behalf of such ENFORCEMENT AUTHORITY; or
 - ii) by or on behalf of the COMPANY, the COMPANY’S board of directors (or similar management body), or any committee of the COMPANY’S board of directors (or similar management body), arising out of:
 - A. a request or demand set forth in i) immediately above;
 - B. the COMPANY’S investigation and evaluation of a SHAREHOLDER DERIVATIVE DEMAND. For the purpose of this subparagraph B, a SHAREHOLDER DERIVATIVE DEMAND means a written demand on the board of directors (or similar management body) or an application to continue a derivative claim against an INSURED under Part 11, Chapter 1 of the UK Companies Act 2006, which is made by one or more shareholders of the COMPANY to assert a CLAIM on behalf of the COMPANY against one or more INSUREDS for a WRONGFUL ACT; or
 - C. an investigation as to whether a violation of law has occurred where such investigation could potentially lead to such investigation being shared with an ENFORCEMENT AUTHORITY whether or not such investigation is ultimately shared with an ENFORCEMENT AUTHORITY;
- and shall not include any routine or regularly scheduled regulatory or internal supervision, inspection, compliance, review, examination, production or audit, including any request for mandatory information from a regulated entity conducted in the normal review or compliance process of the COMPANY by an ENFORCEMENT AUTHORITY.
16. Clause 2. DEFINITIONS, is amended to add the following:
- “MITIGATION COSTS” shall mean reasonable costs, charges, fees or payments which are reasonably intended to prevent a CLAIM or mitigate the severity of LOSS that would be payable under this POLICY.
- “ESG EXECUTIVE” shall mean any director, officer, or employee of the company named in Item I of the Declarations responsible for supervising any aspect of the implementation, management, communication or disclosure of the company named in Item I of the Declarations’ Environmental, Social and Governance (ESG) strategies, policies or procedures.
17. Clause 3. CONDUCT EXCLUSION, is deleted in its entirety and the following is inserted:
3. CONDUCT EXCLUSION
- (a) The INSURER shall not be liable to make any payment for LOSS in connection with that portion of any CLAIM made against the INSUREDS for having:
- 1. gained any personal financial profit or financial remuneration to which they were not legally entitled; or

2. committed any active and deliberate fraud or active and deliberate criminal act;

if a final and non-appealable adjudication in the underlying action (which shall not include an action brought by or against the INSURER) adverse to such INSURED establishes that such INSURED gained any such personal financial profit or financial remuneration or committed such active and deliberate fraud or active and deliberate criminal act with actual dishonest purpose and intent. However, this exclusion shall not apply to DEFENSE COSTS, INDEPENDENT DIRECTORS, any employment-related CLAIM or, with respect to subparagraph 1 immediately above, any actual or alleged violation of Section 11, 12 or 15 of the Securities Act of 1933, as amended.

- (b) For the purposes of this exclusion, “final, non-appealable adjudication” means when:

1. the last court, tribunal, executive, legislative or regulatory agency, body or entity with jurisdiction over the CLAIM denies any further appeal, recourse or other relief from any adverse finding, judgment or decree; or
2. the INSURED has waived or abandoned all rights of appeal from any adverse finding, judgment or decree with respect to the CLAIM; or
3. the time for filing, asserting or pleading any appeal from any adverse finding, judgment or decree has lapsed or is otherwise exhausted, provided such time has not been reinstated.

- (c) Any fact pertaining to or any act, omission, knowledge, intent or WRONGFUL ACT of any INSURED or the COMPANY shall not be imputed to any other INSURED for the purpose of determining the application of this exclusion.

- (d) For acts or omissions which are deemed to be a criminal violation in a jurisdiction outside of the United States and such acts or omissions would not be deemed to be a criminal violation if such acts or omissions took place in a jurisdiction inside of the United States, the imposition of a criminal sanction or fine in such jurisdiction outside the United States will not, by itself, be conclusive proof that an active and deliberate fraudulent, or active and deliberate criminal, act occurred for purposes of this exclusion.

18. Clause 4. LIMITS OF LIABILITY, is deleted in its entirety and the following is inserted:

4. LIMITS OF LIABILITY

The maximum aggregate liability of the INSURER under this POLICY for all LOSS arising out of each CLAIM and all CLAIMS first made during the POLICY PERIOD and, if elected, the DISCOVERY PERIOD shall be the Limit of Liability set forth in Item III of the Declarations, subject to the following:

- (a) In the event the Limit of Liability of this POLICY set forth in Item III.A. of the Declarations (“Initial Limit of Liability”) is exhausted by one or more CLAIMS, this POLICY’s Limit of Liability shall be reinstated in the amount set forth in Item III.B. of the Declarations, FIRST REINSTATED LIMIT OF LIABILITY. With respect to any CLAIM (or any other CLAIM based upon, arising out of or related in any way to such CLAIM (“Related Claim”)) for which there has already been payment of LOSS under the Initial Limit of Liability, the limit of liability under the FIRST REINSTATED LIMIT OF LIABILITY shall be the lesser of: (a) the available limit of the FIRST REINSTATED LIMIT OF LIABILITY or, (b) the amount set forth in Item III.B. of the Declarations less the amounts of LOSS that have already been paid under the Initial Limit of Liability for that CLAIM or Related Claim. Such FIRST REINSTATED LIMIT OF LIABILITY shall be excess of amounts payable under all other insurance policies that are specifically excess of this POLICY and all UNDERLYING INSURANCE providing a similar reinstated limit of liability, even if part of the LOSS for a CLAIM was paid under the Initial Limit of Liability.

- (b) In the event the FIRST REINSTATED LIMIT OF LIABILITY of this POLICY is exhausted by one or more CLAIMS, this POLICY's Limit of Liability shall be reinstated a second time in the amount set forth in Item III.C. of the Declarations, SECOND REINSTATED LIMIT OF LIABILITY. With respect to any CLAIM or Related Claim for which there has already been payment of LOSS under the Initial Limit of Liability and/or the FIRST REINSTATED LIMIT OF LIABILITY, the limit of liability under the SECOND REINSTATED LIMIT OF LIABILITY shall be the lesser of (a) the available limit of the SECOND REINSTATED LIMIT OF LIABILITY, or (b) the amount set forth in Item III.C. of the Declarations less the amounts of LOSS that have already been paid under the Initial Limit of Liability and/or the FIRST REINSTATED LIMIT OF LIABILITY for that CLAIM or Related Claim. Such SECOND REINSTATED LIMIT OF LIABILITY of this POLICY shall be excess of amounts payable under all other insurance policies that are specifically excess of this POLICY and all UNDERLYING INSURANCE providing a similar reinstated limit of liability, even if part of the LOSS for a CLAIM was paid under the Initial Limit of Liability or the FIRST REINSTATED LIMIT OF LIABILITY.
- (c) In the event the SECOND REINSTATED LIMIT OF LIABILITY of this POLICY is exhausted by one or more CLAIMS, this POLICY's Limit of Liability shall be reinstated a third time in the amount set forth in Item III.D of the Declarations, THIRD REINSTATED LIMIT OF LIABILITY, solely for LOSS incurred by duly elected or appointed directors (including shadow and de facto directors) of the company named in Item I of the Declarations. With respect to any CLAIM or Related Claim for which there has already been payment of LOSS under the Initial Limit of Liability, and/or the FIRST REINSTATED LIMIT OF LIABILITY, and/or the SECOND REINSTATED LIMIT OF LIABILITY, the limit of liability under the THIRD REINSTATED LIMIT OF LIABILITY shall be the lesser of (a) the available limit of the THIRD REINSTATED LIMIT OF LIABILITY, or (b) the amount set forth in Item III.D of the Declarations less the amounts of LOSS that have already been paid under the Initial Limit of Liability and/or the FIRST REINSTATED LIMIT OF LIABILITY and/or the SECOND REINSTATED LIMIT OF LIABILITY for that CLAIM or Related Claim. Such THIRD REINSTATED LIMIT OF LIABILITY of this POLICY shall be excess of amounts payable under all other insurance policies that are specifically excess of this POLICY and all UNDERLYING INSURANCE providing a similar reinstated limit of liability, even if part of the LOSS for such CLAIM or Related Claim was paid under the Initial Limit of Liability or the FIRST REINSTATED LIMIT OF LIABILITY or the SECOND REINSTATED LIMIT OF LIABILITY.
- (d) Upon exhaustion of the Limit of Liability and, if applicable, the FIRST REINSTATED LIMIT OF LIABILITY, SECOND REINSTATED LIMIT OF LIABILITY, THIRD REINSTATED LIMIT OF LIABILITY, CODA Access Fund, Public Relations Fund and/or Enforcement Fund, for the POLICY PERIOD by reason of payment of LOSS by the INSURER, the INSURER shall have no further obligations or liabilities under this POLICY with respect to such applicable limit (or sublimit) of liability for the POLICY PERIOD.
- (e) With respect to exhaustion for purposes of the FIRST REINSTATED LIMIT OF LIABILITY, SECOND REINSTATED LIMIT OF LIABILITY, and THIRD REINSTATED LIMIT OF LIABILITY, the limits of liability under any UNDERLYING INSURANCE and any insurance policies excess of this POLICY shall be reduced or exhausted by payments by an insurer, an INSURED and/or a third party.
- (f) DEFENSE COSTS shall be part of and not in addition to the Limit of Liability and, if applicable, the FIRST REINSTATED LIMIT OF LIABILITY, SECOND REINSTATED LIMIT OF LIABILITY, THIRD REINSTATED LIMIT OF LIABILITY, CODA Access Fund, Public Relations Fund and/or Enforcement Fund, as stated in Items III and IV of the Declarations, and payment by the INSURER of DEFENSE COSTS shall reduce such applicable limit of liability for the POLICY PERIOD.
- (g) Multiple demands, suits or proceedings arising out of the same WRONGFUL ACT shall be deemed to be a single CLAIM, which shall be treated as a CLAIM first made during the policy period in which the first of such multiple demands, suits or proceedings is made against any INSURED or in which notice of circumstances relating thereto, or other matters as outlined in Clause 13(c) (INSUREDS' Reporting Duties), is first given and accepted in accordance with Clause 13 (b) or (c) (INSUREDS' Reporting Duties) below, whichever occurs first.

- (h) The INSURER'S maximum liability for any single CLAIM inclusive of a Related Claim shall not exceed the Aggregate Limit of Liability set forth in Item III.A. of the Declarations whether paid by the Initial Limit of Liability, the FIRST REINSTATED LIMIT OF LIABILITY, the SECOND REINSTATED LIMIT OF LIABILITY or the THIRD REINSTATED LIMIT OF LIABILITY.

19. The second paragraph of Clause 5. ALTERNATIVE DISPUTE RESOLUTION, is deleted in its entirety.

20. Clause 6. ASSISTANCE, COOPERATION AND CONSENT, is amended as follows:

- a. The second paragraph is amended to add the following:

INSUREDS shall be entitled to separate counsel in the event of any potential conflict of interest among the INSUREDS.

- b. The third paragraph is deleted in its entirety and the following is inserted:

The INSUREDS shall not offer to settle or settle, assume any obligation, admit any liability or stipulate to any judgment with respect to any CLAIM that is reasonably likely to be covered in whole or in part by, or that is reasonably likely to cause liability to attach under, this POLICY without the INSURER'S prior written consent, which shall not be unreasonably withheld or delayed. The INSURER shall not be liable for or as a result of any offer to settle, settlement, assumed obligation, admission of liability or stipulated judgment to which it has not given its prior written consent. Provided however, the INSURED shall have no obligation to obtain the INSURER's consent prior to (i) entering into a plea agreement or deferred prosecution agreement with an ENFORCEMENT AUTHORITY resolving a pending criminal charge or potential criminal charge, or (ii) disclosing to an ENFORCEMENT AUTHORITY or to the COMPANY that a breach of law or regulation may have occurred.

- c. The following paragraph is added to the end thereof:

Nothing in this Clause 6 shall serve to waive or otherwise limit any attorney-client or work product privilege or protection otherwise available to the INSURED. An INSURED'S assertion of privilege against self-incrimination under any applicable law shall not be deemed a failure to comply with an INSURED'S obligations under this Clause 6.

21. The first paragraph of Clause 7. RENEWAL, is deleted in its entirety and the following is inserted:

Except in the event this POLICY is cancelled in whole or in part in accordance with Clause 8 (Cancellation) below, on the expiration date of this POLICY, upon delivery of the renewal application or submission and payment of the premium, this POLICY shall be renewed to a date one year beyond the expiration date of this POLICY, unless written notice is given by the INSURER to the COMPANY that such POLICY extension is not desired. Such written notice must be given at least 30 days prior to the expiration date of this POLICY.

22. Clause 8. CANCELLATION, Section (c) is deleted in its entirety and the following is inserted:

- (c) If this POLICY is terminated by either the company identified in Item I of the Declarations or the INSURER, the INSURER shall refund any unearned premium computed on a pro rata basis.

23. Clause 10. ADVANCEMENT OF DEFENSE COSTS, is deleted in its entirety and the following is inserted:

10. ADVANCEMENT OF DEFENSE COSTS

Except in those instances when the INSURER has denied liability for the CLAIM because of the application of one or more coverage issues, if the COMPANY fails, refuses or is financially or legally unable to advance DEFENSE COSTS, and if the insurer(s) of the UNDERLYING INSURANCE fails or refuses or otherwise does not advance such costs as described in Clause 1(a) (Insuring Clause) above, the INSURER shall, upon request and if reasonable documentation accompanies the request, advance on behalf of the INSUREDS, or any of them, such DEFENSE COSTS on a current basis, but no later than 45 days after the receipt by the INSURER of such reasonably documented DEFENSE COSTS. In the event that the INSURER so advances DEFENSE COSTS and it is finally established by a final non-appealable adjudication that the INSURER has no liability hereunder for such DEFENSE COSTS, the INSUREDS on whose behalf such advances have been made and the COMPANY, to the fullest extent legally permitted, agree to repay to the INSURER, severally according to their respective interests, all such advanced DEFENSE COSTS.

In the event any advancements or payments are returned or repaid to the INSURER, the INSURER agrees to reinstate, in such amount and as of the date each recovery is received by the INSURER, the limits of liability of this POLICY.

24. Clause 13. INSUREDS' REPORTING DUTIES, Sections (a), (b) and (e) are deleted in their entirety and the following are inserted:

(a) The INSUREDS and/or the COMPANY shall give written notice to the INSURER of any of the following as soon as practicable after the in-house general counsel or risk manager of the company named in Item I of the Declarations first learns thereof:

1. any CLAIM described in Clause 2(b)(1) or (2), Definitions, above;
2. any event described in Clause 8(a) (Cancellation) above;
3. any material change in the terms or conditions of the UNDERLYING INSURANCE occurring during the POLICY PERIOD or the DISCOVERY PERIOD (if elected pursuant to Clause 21 below); or
4. any nonrenewal or cancellation of the UNDERLYING INSURANCE occurring during the POLICY PERIOD or the DISCOVERY PERIOD (if elected pursuant to Clause 21 below).

If the INSUREDS and/or the COMPANY fail to provide notice of any such CLAIM to the INSURER as specified in 1 immediately above, the INSURER shall not be entitled to deny coverage for the CLAIM based upon late notice unless and to the extent the INSURER can demonstrate its interests were materially prejudiced by reason of such late notice.

If the INSURED provides notice of events specified in subparts 3 and 4 above, any additional premium reasonably required by the INSURER as a result of such events shall be paid as soon as practicable after notice of such additional premium by the INSURER.

(b) If, during the POLICY PERIOD or, if elected, the DISCOVERY PERIOD or any prior policy period of a policy issued by the INSURER but in no event later than 60 days after the termination of the POLICY PERIOD, or if elected the DISCOVERY PERIOD, the INSUREDS become aware of any circumstances that may reasonably be expected to give rise to a CLAIM described in Clause 2(b)(1) or (2) above being made against the INSUREDS as set forth in Clause 2(b)(4), and if the INSUREDS or the COMPANY give written notice to the INSURER of such circumstances then such notice of circumstances shall be a CLAIM under this POLICY and any LOSS incurred by an INSURED in connection with his or her response to such circumstances shall be covered, subject to the other terms, conditions and limitations of this POLICY. Any other CLAIM which arises out of such circumstances shall be deemed to have been first made at the time such written notice of circumstances was received by the INSURER. However, if the INSUREDS elect not to report such circumstances, then any subsequent CLAIM which arises out of the circumstances shall be subject to the reporting requirements set forth in 13(a) above, and coverage for such subsequent CLAIM will not be denied because of the INSUREDS' failure to report the circumstances pursuant to this Clause 13(b).

(e) The time when a CLAIM shall be made for purposes of determining the application of Clause 1 (Insuring Clause) above shall be: (i) with respect to a CLAIM described in Clause 2(b)(1) and (2) above, the date on which the CLAIM is first made against the INSURED; and (ii) with respect to a CLAIM described in Clause 2(b)(3),(4),(5) and (6) above, the date on which notice of such CLAIM is given to the INSURER.

25. Clause 14. OTHER INSURANCE, is deleted in its entirety and the following is inserted:

14. OTHER INSURANCE

If any LOSS covered under this POLICY is covered under any other valid and collectible director's and officer's liability insurance, then this POLICY shall cover the LOSS, subject to its terms and conditions, only to the extent that the amount of the LOSS is in excess of the amount of such other insurance, whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is UNDERLYING INSURANCE or is written only as specific excess insurance over the Limit of Liability provided by this POLICY. Such insurance as is provided by this POLICY shall apply as primary to any personal "umbrella" excess liability insurance or personal directorship liability policy purchased by an INSURED.

If LOSS covered under this POLICY is also covered under but not paid by such other valid and collectible director's and officer's liability insurance, this POLICY will respond on behalf of the INSUREDS without regard to such other insurance, subject to the terms, conditions and limitations of this POLICY and without prejudice to the INSURER's right to recover LOSS paid under this POLICY from the issuers of such other insurance.

26. The last two paragraphs of Item VII, Notice to INSURER, of the Declarations are deleted in their entirety and Clause 15. NOTICE, is deleted in its entirety and the following is inserted:

15. NOTICE

All notices under any provision of this POLICY shall be in writing and if given by a method other than email, such notice shall be by prepaid express courier properly addressed to the appropriate party at the respective addresses as shown in Items VI and VII of the Declarations, and notice so given shall be deemed to be received and effective upon actual receipt thereof by the party or one day following the date such notice is sent, whichever is earlier, subject to proof of transmittal. If notice is provided by email, such notice shall be provided to the email address set forth in Item VII of the Declarations. Notice to the INSURER of any CLAIM shall be directed to the attention of the INSURER's claims department. All other notices to the INSURER shall be directed to the attention of the INSURER's underwriting department.

27. Clause 19. SUBROGATION, Sections (b) and (c) are deleted in their entirety and the following are inserted:

- (b) The INSUREDS shall execute all papers reasonably required and shall take all reasonable actions that may be necessary to secure the rights of the INSURER, including the execution of such documents reasonably necessary to enable the INSURER effectively to bring suit in the name of the INSUREDS, including but not limited to an action against the COMPANY or the insurer(s) of the UNDERLYING INSURANCE for nonpayment of indemnity due and owing to the INSUREDS by the COMPANY or the insurer(s), respectively.
- (c) In no event shall the INSURER exercise its right of subrogation against an INSURED unless and to the extent Clause 3 (Conduct Exclusion) applies to such INSURED, in which event the INSURER shall have the right to subrogate against such INSURED severally according to his or her respective interests.

28. Clause 21. DISCOVERY PERIOD, Section (b) is deleted in its entirety and the following is inserted:

- (b) If nonrenewal of this POLICY follows the commencement during the POLICY PERIOD of a liquidation or reorganization proceeding described in Clause 22 (Bankruptcy) below, then any DISCOVERY PERIOD elected by the COMPANY or the INSUREDS shall be ten years from the date of such nonrenewal ("Insolvency Discovery Period") for CLAIMS first made during such Insolvency Discovery Period based on WRONGFUL ACTS alleged to have occurred prior to such nonrenewal. No additional premium shall be required for the Insolvency Discovery Period.

29. The first paragraph of Clause 22. BANKRUPTCY, is deleted in its entirety and the following is inserted:

In the event a liquidation or reorganization proceeding is commenced by or against the COMPANY or any INSURED, pursuant to the United States Bankruptcy Code, as amended, or any similar state, local, or foreign law, such proceeding shall not relieve the INSURER of its obligations nor deprive the INSURER of its rights or defenses under this POLICY. In the event of such liquidation or reorganization proceeding, the COMPANY and the INSUREDS hereby: (i) waive and release any automatic stay or injunction or similar payment prohibition which may apply in such proceeding to this POLICY or its proceeds under such Bankruptcy Code or law; and (ii) agree not to oppose or object to any efforts by the INSURER, the COMPANY or any INSURED to obtain relief from any such stay or payment prohibition.

30. Clause 23. APPEALS, is deleted in its entirety.

31. Clause 24. TERRITORY, is amended to add the following to the end thereof:

This POLICY does not apply to the extent that trade or economic sanctions prohibit the INSURER or any of its directors, officers, employees, or agents from providing insurance, including, but not limited to, the payment of claims.

32. Clause 25. SEVERABILITY, is deleted in its entirety and the following is inserted:

25. SEVERABILITY

The APPLICATION for coverage shall be construed as a separate APPLICATION for coverage by each INSURED. With respect to the declarations and statements contained in such APPLICATION for coverage, no statement in the APPLICATION or knowledge possessed by any one INSURED shall be imputed to any other INSURED for the purpose of determining the availability of coverage with respect to CLAIMS made against any other INSURED. Any fact pertaining to, or any act, omission, knowledge, WRONGFUL ACT or intent of any INSURED or COMPANY shall not be imputed to any other INSURED with respect to coverage under this POLICY. With the exception of failure to pay premium, the failure of any one INSURED with respect to any obligation under this POLICY shall not be imputed to another INSURED including obligations under Clauses 3 (Conduct Exclusion), 6 (Assistance, Cooperation and Consent), 10 (Advancement of DEFENSE COSTS), 13(a) (INSURED's Reporting Duties) and 19 (Subrogation).

In the event that any provision of this POLICY shall be declared or deemed to be invalid or unenforceable under any applicable law, such invalidity or unenforceability shall not affect the validity or enforceability of the remaining portion of this POLICY.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this POLICY shall remain unchanged.

Authorized Representative

SIGNATURES

Named Insured Rand Topco, LLC			Endorsement Number 005
Policy Symbol DOX	Policy Number G71101897 004	Policy Period 03/17/2026 to 03/17/2027	Effective Date of Endorsement 03/17/2026
Issued By (Name of Insurance Company) ACE American Insurance Company			

THE ONLY COMPANY APPLICABLE TO THIS POLICY IS THE COMPANY NAMED ON THE FIRST PAGE OF THE DECLARATIONS.

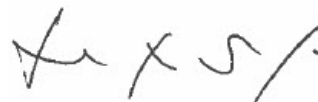
By signing and delivering the policy to you, we state that it is a valid contract.

INDEMNITY INSURANCE COMPANY OF NORTH AMERICA (A stock company)
BANKERS STANDARD INSURANCE COMPANY (A stock company)
ACE AMERICAN INSURANCE COMPANY (A stock company)
ACE PROPERTY AND CASUALTY INSURANCE COMPANY (A stock company)
INSURANCE COMPANY OF NORTH AMERICA (A stock company)
PACIFIC EMPLOYERS INSURANCE COMPANY (A stock company)
ACE FIRE UNDERWRITERS INSURANCE COMPANY (A stock company)
WESTCHESTER FIRE INSURANCE COMPANY (A stock company)

436 Walnut Street, P.O. Box 1000, Philadelphia, Pennsylvania 19106-3703



Brandon Peene, Secretary



Juan Luis Ortega, President

Authorized Representative

TRADE OR ECONOMIC SANCTIONS NOTICE

This insurance does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit us from providing insurance, including, but not limited to, the payment of claims. All other terms and conditions of the policy remain unchanged.

**U.S. Treasury Department's
Office
Of Foreign Assets Control
("OFAC")
Advisory Notice to Policyholders**

This Policyholder Notice shall not be construed as part of your policy and no coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.



Chubb Producer Compensation Practices & Policies

Chubb believes that policyholders should have access to information about Chubb's practices and policies related to the payment of compensation to brokers and independent agents. You can obtain that information by accessing our website at <http://www.chubbproducercompensation.com> or by calling the following toll-free telephone number: 1-866-512-2862.

QUESTIONS ABOUT YOUR INSURANCE?

Answers to questions about your insurance, coverage information, or assistance in resolving complaints can be obtained by contacting:

**CHUBB
Customer Support Service Department
436 Walnut Street
PO Box 1000
Philadelphia, PA 19106-3703
1-800-352-4462**